



WORQsense

Board edition:
ten questions to put
to management

THE POSH DEFENSIBILITY AUDIT • BOARD EDITION

WOULD YOUR ORGANISATION'S PROCESS **HOLD UP?**

In 2025, courts struck down employment actions and quashed complaints because the process failed, not the facts. The NCW now recommends **mandatory annual PoSH audits** for establishments with ten or more people, reported to District Authorities. Ten questions a board should put to management before an auditor, a tribunal, or a journalist does. **Score one point for every unqualified "yes."**

01 Do we know our exposure?

YES ☐ NO ☐

Complaints received, cases pending, and Internal Committees constituted in every office, branch, and unit that requires one, across all entities and locations.

02 Would our ICs survive a constitution challenge?

YES ☐ NO ☐

Presiding officer, external member, women's representation, current tenure, notified appointments - across every committee, not just headquarters.

03 Who investigates our critical cases, and to what standard?

YES ☐ NO ☐

A named, credentialled standard for high-risk matters - not whoever was available. Independence documented: no advisory role, no reporting line, no prior relationship.

04 Would our inquiry files survive an external audit?

YES ☐ NO ☐

Timelines, notices, interview records, confidentiality safeguards, and reasoned findings evidenced in the file itself. The NCW audit regime will ask to see the record, not hear the explanation.

05 Are our statutory disclosures current and consistent?

YES ☐ NO ☐

Annual reports under the PoSH Act, directors' report disclosures under the Companies Act, and SHe-Box obligations - telling the same story.



06 How are complainants protected once they complain?

YES ☐ NO ☐

Employment, pay, and role untouched during pendency. Courts now treat retaliation as a PoSH violation in itself - and adverse actions during a pending complaint draw strict scrutiny.

07 Is conduct assessed on impact, not intent?

YES ☐ NO ☐

The reasonable-woman standard, applied and documented. "He didn't mean it that way" is no longer a defence anywhere in the process.

08 Are IC members professionally trained for inquiry work?

YES ☐ NO ☐

The NCW advisory calls for specialised training for "fair, sensitive and legally sound inquiry processes." Compliance orientation is not inquiry capability.

09 Does the board see process quality, not just case counts?

YES ☐ NO ☐

Reporting that shows how inquiries were run - timelines met, standards applied, outcomes challenged - not only how many complaints arrived.

10 What did our last inquiry change?

YES ☐ NO ☐

If no policy, structure, or leadership condition changed after the finding, the organisation bought a report, not a resolution - and the next complaint is already forming.

READING THE SCORE

9-10 **Well governed.** Verify it annually - the NCW audit regime will do exactly that, with less charity.

6-8 **Governance gaps.** Each "no" is a finding an external audit would record and a tribunal would exploit.

0-5 **Board-level exposure.** The organisation is one complaint away from discovering these answers in public.

A checklist can show you the gap. Closing it is capability work. AWI-aligned investigation methodology, in-depth interview training with IMS Australia, and expert system diagnostics that prevent the next complaint - **worqsense.com** | vidya@worqsense.com | +91 7736796809

This document is an indicative self-assessment for internal reflection. It is not legal advice and is not a substitute for a formal audit, legal review, or professional advice on any specific matter.